

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: February 4, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION TO EXTEND SCHEDULING ORDER DEADLINES

On February 3, 2026, the parties filed a Joint Motion to Extend Scheduling Order Deadlines (the “Joint Motion”) by 30 days due to outstanding discovery disputes.

On November 20, 2025, I issued a Scheduling Order, with a deadline to complete fact discovery by February 5, 2026, deadlines to produce initial and rebuttal expert reports by February 12 and 19, 2026, respectively, and a deadline to take expert depositions by February 26, 2026.

On January 27, 2026, Complainant filed Complainant’s Motion to Compel Deposition of Respondent’s Corporate Representative (the “MTC”). In the MTC, Complainant asserts that Respondent will not allow its corporate representative to be deposed. (*See generally* MTC).

On February 2, 2026, Respondent filed Respondent’s Opposition to Motion to Compel and Cross-Motion for Protective Order (the “MPO”). In the MPO, Respondent argued that the MTC was procedurally improper,¹ that the requested deposition topics are overly broad, and, in any event, the Respondent’s corporate representative has already been examined by Complainant in another proceeding. (*See generally* MPO).

I will not rule on the merits of the MTC or MPO until both motions are fully briefed. In the meantime, I find that it is reasonable to extend discovery deadlines until this discovery-related issue is resolved. Accordingly, the Joint Motion is **GRANTED**. It is **ORDERED** that the Scheduling Order issued November 20, 2025, is amended as follows:

¹ Respondent filed a Notice of Taking of Deposition on February 2, 2026. The parties are reminded that discovery material – such as a deposition notice – is ***not*** to be filed until the discovery material is used in a proceeding (such as in motion), or is required by the Commission or the Presiding Officer. (46 C.F.R. § 502.2(k); Initial Order, at ¶ 12).

March 9, 2026 ²	Complete Fact Discovery
March 16, 2026	Disclosure-Initial Expert Reports
March 23, 2026	Disclosure-Rebuttal Expert Reports
March 30, 2026	Complete Expert Depositions
March 30, 2026	Close of discovery and completion of depositions (if any)
May 11, 2026 ³	Complainant's brief, proposed findings of fact, and appendix.
June 1, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
June 15, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties are reminded that this matter is to be resolved within one year of the Complaint being filed, which is July 29, 2026. (*See* Notice of Filing of Complaint and Assignment). The parties should be mindful of that deadline as this matter proceeds.

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge

² In the Joint Motion, the parties suggested deadlines of March 8, 15, and 22, 2026. Those are all Sundays. Therefore, I moved the proposed deadlines to the respective Mondays.

³ The Joint Motion does not discuss the briefing deadlines, but I amended the briefing deadlines by a corresponding 30 days.